

IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF COLORADO

Civil Action No. **06 - CV - 01016**  
(To be supplied by the court)

**FILED**  
UNITED STATES DISTRICT COURT  
DENVER, COLO.

**MAY 26 2006**

GREGORY C. LANGHAM  
CLERK

Arthur James Comax, Plaintiff,

v.

Sgt. Benson and three (3),

Unknown name,

Unknown name,

Unknown name,

\_\_\_\_\_ ,

\_\_\_\_\_ ,

\_\_\_\_\_ ,

\_\_\_\_\_, Defendant(s).

(List each named defendant on a separate line.)

\_\_\_\_\_  
**PRISONER COMPLAINT**  
\_\_\_\_\_

**RECEIVED**  
UNITED STATES DISTRICT COURT  
DEN

**MAY 19 2006**

GREGORY C. LANGHAM  
CLERK

**A. PARTIES**

1. Arthur James Comax #1452082  
(Plaintiff's name, prisoner identification number, and complete mailing address)  
P.O. Box 1108 Denver, CO. 80201

2. Sgt. Renson (Deputy Sheriff)  
(Name, title, and address of first defendant)  
1437 Bannock St. Denver, CO. 80202

At the time the claim(s) alleged in this complaint arose, was this defendant acting under color of state law? ☒ Yes ☐ No (CHECK ONE). Briefly explain your answer:

As the assault and tasing were going on as  
supervising Sergeant allowed it to happen.

3. Unknown (Deputy Sheriff) name #1  
(Name, title, and address of second defendant)  
1437 Bannock St. Denver, CO. 80202

At the time the claim(s) alleged in this complaint arose, was this defendant acting under color of state law? ☒ Yes ☐ No (CHECK ONE). Briefly explain your answer:

This deputy on the job, was the person doing  
the tasing and assaulting.

4. Unknown (Deputy Sheriff) name #2  
(Name, title, and address of third defendant)  
1437 Bannock St. Denver, CO. 80202

At the time the claim(s) alleged in this complaint arose, was this defendant acting under color of state law? ☒ Yes ☐ No (CHECK ONE). Briefly explain your answer:

This deputy on the job aided in the assault.

(If you are suing more than three defendants, use extra paper to provide the information requested above for each additional defendant. The information about additional defendants should be labeled "A. PARTIES.")

## A. PARTIES

5. Unknown (Deputy Sheriff) name #3  
(Name, title, and address of each defendant).

1437 Bannock St. Denver, CO. 80202

At the time the claim(s) alleged in this complaint arose, was this defendant acting under color of state law? ☒ Yes ☐ No  
(CHECK ONE). Briefly explain your answer:

This deputy on the job, aided in the assault.

## B. JURISDICTION

1. I assert jurisdiction over my civil rights claim(s) pursuant to: (check one if applicable)

☒ 28 U.S.C. § 1343 and 42 U.S.C. § 1983 (state prisoners)

☐ 28 U.S.C. § 1331 and *Bivens v. Six Unknown Named Agents of Fed. Bureau of Narcotics*, 403 U.S. 388 (1971) (federal prisoners)

2. I assert jurisdiction pursuant to the following additional or alternative statutes (if any):

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## C. NATURE OF THE CASE

**BRIEFLY** state the background of your case. If more space is needed to describe the nature of the case, use extra paper to complete this section. The additional allegations regarding the nature of the case should be labeled "C. NATURE OF THE CASE."

On 4-28-06, I went to P.M. Court. I was in the holding tank waiting to go to court. The officer came to take me to court, and I told him I wanted to see my lawyer. He told me no. He and some other officers forced me to go anyway. Upon my arrival back from court in the holding tank, the same officers tried to put me in some extra restraints for no reason. I asked why. And didn't know what to do. All of a sudden I was on the ground being tased with electricity in my neck and back, while being in handcuffs and leg iron. Afterwards, taken to the city jail in much pain, and was refused any medical attention. I was placed in the hole without due process of law or a hearing.

#### D. CAUSE OF ACTION

State concisely every claim that you wish to assert in this action. For each claim, specify the right that allegedly has been violated and state all supporting facts that you consider important, including the date(s) on which the incident(s) occurred, the name(s) of the specific person(s) involved in each claim, and the specific facts that show how each person was involved in each claim. You do not need to cite specific cases to support your claim(s). If additional space is needed to describe any claim or to assert more than three claims, use extra paper to continue that claim or to assert the additional claim(s). The additional pages regarding the cause of action should be labeled "D. CAUSE OF ACTION."

1. Claim One: Denied due process of law

Supporting Facts: On 4-28-06, I went to P.M. court. I was in the holding tank waiting to go to court. The unknown name officer came to take me to court, and I told him I wanted to see my lawyer. He told me no. He and some other officers forced me to go anyway. Upon my arrival back from court in the holding tank. The same unknown name officers, along with the other unknown name officer help them as they tried to put the extra restraints (waist chain) on me, for no reason. I asked why. And didn't know what to do. All of a sudden I was on the floor being tased by unknown name officer #1, with electricity and kneed in my body. The other unknown name officer #2, was holding me on the floor and kneeling me in my body as well, while the tasing was being done. Unknown name officer #3, was also holding me down by holding and pulling on my leg iron, and with my handcuffs being on. No write up or violation was issued to me, after the incident. But I was put in the hold or segregation, without due process of law or a hearing.

2. Claim Two: Denied equal protection of law

Supporting Facts: On 4-28-06, I went to P.M. court. I was in the holding tank waiting to go to court. Unknown name officer #2, came to take me to court, and I told him I wanted to see my lawyer. He told me no. Unknown name officer #2, and some other officers forced me to go any way. Upon my arrival back from court in the holding tank. The same officers tried to put me in some extra restraints, for no reason. I asked why. And didn't know what to do. All of a sudden I was on the floor being tased by unknown name officer #1, with electricity in my neck and back, while being in handcuffs and leg iron. Afterwards, I was taken to the city jail by unknown name officer #2 and a co-officer of his, in much pain. I were denied any medical attention upon arrival there. I stayed over night night at the city jail, and was return back to the county jail the next day. Then sent straight to the hold (segregation), again without any medical attention, upon my request, until a day later. Then without due process of law or a hearing.

3. Claim Three: Cruel and unusual punishment

Supporting Facts: During the assault on 4-28-06. I were attack by three unknown names officers at the Denver County Court House. I was forced into the court room, without giving any resistance, by unknown name officer #2, and some more officers. Upon my arrival back in the holding tank, unknown name officer #2 came and put me in handcuff, before leaving for the county jail, and wanted to put extra restraints (waist chain) on me, for no reason. I asked why. And didn't know what to do. All of a sudden I was on the floor being tased by unknown name officer #1 in my back and neck, and also I was being kneed in my body by him. Unknown name officer #2 was holding me down, while I was being tased, he was also kneeling me in my body. Unknown name officer #3 was holding me down by my leg iron and pulling on them during the assault, while I were both in handcuff and leg iron. Sgt. Renson being shift supervisor allowed the assault to happen.



"D. CAUSE OF ACTION"4. Claim Four: Excessive Force

Supporting Facts: During the assault on 4-28-06. I were attack by three unknown names officers at the Denver County Court House. I was forced into the court room without giving any resistance, by unknown name officer #2, and some more officers. Upon my arrival back in the holding tank, Unknown name officer #2 came and put me in handcuff, before leaving for the county jail, and wanted to put me in some extra restraints (waist chain) on me, for no reason, I asked way for the sergeant he ignored my request and got angry, and said some very offensive words to me. And I didn't know what else to do. All of a sudden I was on the floor being tased by unknown name officer #1 in my back and neck, and also I was being kneed in my body by him. Unknown name officer #2 was holding me down, while I was being tased, he was also kneeling me in my body. Unknown name officer #3 was holding me down by my leg iron and pulling on them during the assault, while I were both in handcuff and leg iron. Sgt. Benson being shift supervisor allowed the assault to happen.



### E. PREVIOUS LAWSUITS

Have you ever filed a lawsuit, other than this lawsuit, in any federal or state court while you were incarcerated?    Yes    ☒ No (CHECK ONE). If your answer is "Yes," complete this section of the form. If you have filed more than one lawsuit in the past, use extra paper to provide the necessary information for each additional lawsuit. The information about additional lawsuits should be labeled "E. PREVIOUS LAWSUITS."

1. Name(s) of defendant(s) in prior lawsuit: \_\_\_\_\_
2. Docket number and court name: \_\_\_\_\_
3. Claims raised in prior lawsuit: \_\_\_\_\_
4. Disposition of prior lawsuit (for example, is the prior lawsuit still pending? Was it dismissed?): \_\_\_\_\_
5. If the prior lawsuit was dismissed, when was it dismissed and why? \_\_\_\_\_
6. Result(s) of any appeal in the prior lawsuit: \_\_\_\_\_

### F. ADMINISTRATIVE RELIEF

1. Is there a formal grievance procedure at the institution in which you are confined?  
   ☒ Yes    No (CHECK ONE).
2. Did you exhaust available administrative remedies?    ☒ Yes    No (CHECK ONE).

If yes, either attach copies or describe with specificity how you have exhausted administrative remedies. If no, briefly explain why not:

To the major and to interfaith grievance was submitted  
to administrative on 4-30-06 and 5-5-06.

### G. REQUEST FOR RELIEF

State the relief you are requesting. If you need more space to complete this section, use extra paper. The additional requests for relief should be labeled "G. REQUEST FOR RELIEF."

1. Compensatory damages in the amount of \$5000.00 from defendant Renson and each unknown defendant.
2. Punitive damages in the amount of \$10,000.00 from defendant Renson from each unknown defendant.
3. \$500.00 per day for each day for each day that Plaintiff spent in segregation as a result of this incident.
4. A jury trial on all issues triable by jury.
5. Such other and further relief the court deems just and appropriate.

### DECLARATION UNDER PENALTY OF PERJURY

I declare under penalty of perjury that I am the plaintiff in this action, that I have read this complaint, and that the information in this complaint is true and correct. See 28 U.S.C. § 1746; 18 U.S.C. § 1621.

Executed on May 17, 2006  
(Date)

Arthur G. Lomax  
(Prisoner's Original Signature)

To: Internal Affairs

Denver County DENVER SHERIFF DEPARTMENT  
Inmate GRIEVANCE FORM

Nº 66449

NAME: Arthur S. Comax #1452082 LOCATION: 8 A-6

DATE AND TIME OF INCIDENT: 4-28-06/4:30pm.

STATEMENT DETAILING THE ACT OR CONDITION GIVING RISE TO THE GRIEVANCE: I WENT TO P.M.

Court I was in the Holding TANK. WAITING TO go TO  
Court The OFFICER came to TAKE ME TO COURT, AND I  
Told Him I WANTED TO SEE My LAWYER. HE Told me NO. He  
AND SOME OTHER OFFICERS FORCED ME TO go ANY WAY. UPON MY  
Arrival BACK FROM Court in the holding TANK, THE SAME  
OFFICERS TRIED TO PUT ME IN SOME EXTRA RESTRAINTS. FOR  
NO REASON I ASKED why. AND DIDNT KNOW WHAT TO do. ALL OF  
A Sudden I WAS ON THE ground BEING Tased IN My NECK  
with Electricity. AND ALSO IN My BACK. I WENT TO THE City-  
jail AFTERWARDS, AND WAS DENIED any medical ATTENTION.  
AFTER BEING IN so much PAIN. NO ONE WANTS TO TAKE PHOTOS OF  
THE CUTS, MARKS ON My NECK, BACK, RISK. Please. This is  
SPECIFIC REMEDY SOUGHT: urgent.

ON THE above DATE: A Sgt. Benson was shift  
supervisor and a DIS Bowels was there during the incident.

SUPERVISORS / OFFICERS ANSWER:

As for the belly chain, your behavior  
dictated it be utilized. This was for your safety & the  
safety of staff. Additionally, records indicate you  
were seen by medical, both nurse & doctors, for your  
medical complaints up to four separate times. You  
list no remedy sought; however I again find that  
appropriate action was taken. Capt. Blair

(IF MORE SPACE IS REQUIRED, ADDITIONAL PAPER MAY BE USED)

DATE SUBMITTED: MAY 5, 2006 INMATE'S SIGNATURE: Arthur S. Comax

RECEIVED BY: DIS Plummer 597043  
(NAME AND TITLE)

DATE RECEIVED: 5-5-06  
SI: E RD 5 X1700

ASSIGNED TO: CAPT. BLAIR  
Arabal

DATE: 5-5-06  
SHORT DATE

**DENVER SHERIFF DEPARTMENT  
INMATE GRIEVANCE FORM**

**Nº 72054**

NAME: Arthur J. LOMAX LOCATION: 6-E10

DATE AND TIME OF INCIDENT: 4-28-06/4:30pm. 1452082

STATEMENT DETAILING THE ACT OR CONDITION GIVING RISE TO THE GRIEVANCE: I WENT TO P.M  
Court I WAS IN THE Holding TANK, WAITING TO go TO  
Court THE OFFICER CAME TO TAKE ME TO COURT, AND I  
Told Him I WANTED TO SEE MY LAWYER, HE Told ME NO.  
HE AND SOME OTHER OFFICERS FORCED ME TO go ANY  
WAY. UPON MY ARRIVAL BACK FROM Court IN THE  
holding TANK, THE SAME OFFICER TRIED TO PUT ME  
IN SOME EXTRA RESTRAINTS, For NO REASON I  
ASKED why, AND DIDNT KNOW WHAT TO do, All OF A sudden  
I WAS ON THE ground BEING TASED IN MY NECK WITH  
ELECTRICITY. AND ALSO IN MY BACK. (Cont')

SPECIFIC REMEDY SOUGHT: \_\_\_\_\_

DATED April 28, 2006

SUPERVISORS / OFFICERS ANSWER: \_\_\_\_\_

May 14, 2006  
Mr. Jany, after locating the rights from the  
Court Services division, I have found that the incident  
& amount of force used was within the departments  
guidelines. If your ordered to go to court you need to go.  
When the officer went to handcuff you, you became  
resistive, this is an act of aggression & requires the officers  
to react. You are not allowed to refuse or not make demands  
on conditions on when or how you will appear.

DATE SUBMITTED: April 28, 2006 INMATE'S SIGNATURE: \_\_\_\_\_

RECEIVED BY: PS Bullman Saxez  
(NAME AND TITLE)

DATE RECEIVED: 4/30/06

ASSIGNED TO: CAPT. BLAIR

DATE: 5-2-06

SMOULLEN

ARTHUR J. LOMAX, #1452082  
P.O. BOX 1108  
DENVER, CO. 80201

Clerk  
Alfred A. Arraj  
901 19th  
Denver,

Legal